

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CARTIER MOREAU,

Plaintiff,

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; DANIELLE MARTINEZ,
Shield 5536; VANESSA SOLIS, Shield 29374;
NICHOLAS TORRISI, Sergeant; JANE DOE 1,

Defendants.

SUMMONS

Plaintiff designates
Bronx County
as the place of trial

The basis of venue is based on
CPLR § 504(3)

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the within verified complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on Plaintiff's attorney within twenty (20) days after the service of summons, exclusive of the day of service or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the notice set forth below and in the within verified complaint.

Dated: Albany, New York
November 28, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.
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Defendants' Addresses:

CITY OF NEW YORK, 100 CHURCH STREET, NEW YORK, NY 10007

NEW YORK CITY POLICE DEPARTMENT, 1 POLICE PLAZA, NEW YORK, NY 10038

DANIELLE MARTINEZ, Shield 5536, CHARACTER ASSESSMENT SECTION, 1 POLICE PLAZA, NEW YORK, NY 10038

VANESSA SOLIS, Shield 29374, 44TH PRECINCT, 2 EAST 169TH STREET, BRONX, NY 10452-7800

NICHOLAS TORRISI, Sergeant; 44TH PRECINCT, 2 EAST 169TH STREET, BRONX, NY 10452-7800

JANE DOE 1, POLICE OFFICER, 44TH PRECINCT, 2 EAST 169TH STREET, BRONX, NY 10452-7800

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

CARTIER MOREAU,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK; NEW YORK CITY
POLICE DEPARTMENT; DANIELLE MARTINEZ,
Shield 5536; VANESSA SOLIS, Shield 29374;
NICHOLAS TORRISI, Sergeant; JANE DOE 1,

Defendants.

CARTIER MOREAU, by his attorneys, LEBEDIN KOFMAN LLP, complaining against
Defendants CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT; DANIELLE
MARTINEZ, Shield 5536; VANESSA SOLIS, Shield 29374; NICHOLAS TORRISI, Sergeant;
JANE DOE 1, upon information and belief, alleges as follows:

INTRODUCTION

1. Plaintiff brings this action for compensatory damages and punitive damages under the common law of the State of New York, and for compensatory damages, punitive damages, and attorney's fees pursuant to 42 U.S.C. §§ 1983 and 1988 for violation of her rights under the United States Constitution, and for violation of her rights under the laws and Constitution of the State of New York.

2. The allegations are based on the personal observations and/or experiences of the Plaintiff, and on information and belief, the sources thereof are documents prepared in connection with the incident and public documents and information relating thereto which are presently available to Plaintiff.

3. Plaintiff filed a Notice of Claim in accordance with General Municipal Law Sections 50-e and 50-i on or about March 28, 2022. The notice of claim set forth the name and address of Plaintiff, her attorneys, the nature of the claim, the time and place where it occurred, and the items and amounts of damages claimed. A 50-h hearing was held on June 9, 2022.

4. At least 30 days has passed since service of the Notice of Claim, and payment of the claim has either been refused or neglected.

5. This action is being commenced within one year and 90 days of accrual.

PARTIES

6. At all relevant times, the Plaintiff, CARTIER MOREAU, resided in Bronx County, City and State of New York.

7. At all relevant times, Defendant CITY OF NEW YORK (City) was and is a municipal corporation incorporated and existing under the laws of the State of New York.

8. At all relevant times, Defendant NEW YORK CITY POLICE DEPARTMENT (NYPD) was and is an agency of the City.

9. At all relevant times, Defendant City operated, controlled and managed Defendant NYPD.

10. At all relevant times, Defendant DANIELLE MARTINEZ, Shield 5536, was a police officer with the NYPD working out of the 44th Precinct. She is sued in her individual and official capacities.

11. At all relevant times, Defendant VANESSA SOLIS, Shield 29374, was a police officer with the NYPD working out of the 44th Precinct. She is sued in her individual and official capacities.

12. At all relevant times, Defendant NICHOLAS TORRISI, was a Sergeant with the NYPD working out of the 44th Precinct. He is sued in his individual and official capacities.

13. Upon information and belief, Defendant JANE DOE 1 was a police officer with the NYPD working out of the 44th precinct. The name of this officer is not yet known. She is sued in her individual and official capacities.

14. At all relevant times, the individual Defendants acted in the scope of their authority as public servants for the City of New York and the New York City Police Department.

15. At all relevant times, the Defendants acted under color of law, to wit, under the color of the Constitution, statutes, laws, rules, regulations, ordinances, charters, customs, policies, and usages of the City of New York and the State of New York.

FACTS

16. On the afternoon of August 31, 2021, the Plaintiff, Cartier Moreau, was falsely arrested by Defendant police officers Danielle Martinez and Vanessa Solis.

17. About two hours earlier, Ms. Moreau's Ex came, uninvited, to Ms. Moreau's apartment. The Ex was repeatedly ringing the doorbell and making a scene outside. Ms. Moreau had only recently moved there and felt embarrassed about her Ex's behavior outside so she let her in.

18. A verbal argument ensued, and the Ex destroyed property in Ms. Moreau's

apartment, lit the stove in an attempt to start a fire, and stole Ms. Moreau's camera, iWatch, and other property.

19. The Ex finally left the apartment, and a little while later, Ms. Moreau heard another commotion and saw police outside of her apartment with her Ex.

20. Ms. Moreau went outside and learned from Defendants Solis and Martinez that her Ex claimed that she punched her in the face and strangled her, causing pain and difficulty breathing.

21. Ms. Moreau vehemently denied doing this, and in fact the Ex had no injuries whatsoever, including no marks, bruises, swelling, bleeding, or any other injury at all on her neck or face.

22. Ms. Moreau also let the police know what her Ex did to her apartment and property and she asked them to go into her apartment to see the damage. She also let them know that her Ex stole her property and had it on her. Upon information and belief, the police also stated that the Ex appeared to be emotionally disturbed.

23. Despite the evidence indicating the Ex had fabricated the assault and had not been strangled or punched in the face, the evidence indicating the Ex had just committed felony level crimes, and the Ex's prior history of first and second-degree assault convictions, Defendants Solis and Martinez arrested and charged Ms. Moreau with misdemeanor assault, among other charges.

24. She was brought to the 44th Precinct and searched underneath her clothes by Defendant Jane Doe 1 in front of men who were in a holding cell. She was also stripped, and although she was menstruating, police would not give her sufficient supplies.

25. After a few hours at the Precinct, Ms. Moreau had a panic attack and had to be

brought to the hospital. She was shackled and handcuffed so tightly that she has marks on her arms and a scar on her legs.

26. After about 24 hours in custody, she was arraigned and RORd.

27. Defendant Sergeant Torrisi signed off on her arrest.

28. The charges were dismissed on March 21, 2022 because the prosecution was unable to prove the case.

29. Additionally, upon information and belief, charges were ultimately brought against the Ex for her actions during the incident.

30. In addition to being falsely arrested, suffering through the indignity of the searches at the precinct, held in custody for about 24 hours, and maliciously prosecuted on false charges, Plaintiff continues to suffer psychologically from the attack. She is traumatized and hypervigilant around police now, and she has had to seek counseling to help her deal with what happened.

CAUSES OF ACTION
STATE CLAIMS

**FIRST CAUSE OF ACTION AGAINST DEFENDANTS SOLIS, MARTINEZ, TORRISI,
NYC, AND NYPD
FALSE ARREST**

31. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

32. As set forth above, Defendants Solis and Martinez arrested Ms. Moreau despite the lack of probable cause, including the fact that the evidence indicated she did not do what was alleged, and the Ex's credibility problems. Defendant Torrisi signed off on the arrest.

33. Defendant City is responsible and liable for the acts of its employees and agents, which were done within the scope of their employment, under the doctrine of *respondeat superior*.

34. As a direct and proximate result of these actions and inactions, Plaintiff has been irreparably injured.

SECOND CAUSE OF ACTION AGAINST DEFENDANTS SOLIS, MARTINEZ, TORRISI,
NYC, AND NYPD
MALICIOUS PROSECUTION

35. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

36. As set forth above, Defendants Solis, Martinez, and Torrissi caused Plaintiff to be charged and prosecuted on false charges, despite the lack of evidence supporting the charges.

37. Defendant City is responsible and liable for the acts of its employees and agents, which were done in the scope of their employment, under the doctrine of *respondeat superior*.

38. As a direct and proximate result of these actions and inactions, Plaintiff has been irreparably injured.

THIRD CAUSE OF ACTION AGAINST DEFENDANTS JANE DOE 1, NYC, AND NYPD
NEGLIGENCE/GROSS NEGLIGENCE

39. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

40. As set forth above, Defendant Jane Doe 1 searched Plaintiff underneath her clothes in front of men, and the police then further indignified her by making her strip and not providing her with sufficient menstruation supplies.

41. Defendants City and NYPD are responsible and liable for the acts of their employees and agents, including the individually named Defendants here, which were done within the scope of their employment under the doctrine of *respondeat superior*.

42. As a direct and proximate result of these failures, Plaintiff has been irreparably injured.

**FOURTH CAUSE OF ACTION AGAINST ALL DEFENDANTS
NEGLIGENT/INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

43. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

44. As set forth above, Defendants Solis, Martinez, and Torrisi arrested or caused Plaintiff to be arrested, charged, and prosecuted on false charges and despite the lack of probable cause and sufficient evidence. Defendant Jane Doe 1 caused Plaintiff to be humiliated by searching her in front of men.

45. These Defendants knew or should have known that their actions would result in injury to Plaintiff.

46. This extreme and outrageous conduct occurred with the intent to cause, or the disregard of a substantial probability of causing, severe emotional distress to Plaintiff.

47. Defendants City and NYPD are responsible and liable for the acts of their employees and agents, including the individually named Defendants here, which were done within the scope of their employment under the doctrine of *respondeat superior*.

48. As a direct and proximate result of these failures, Plaintiff has been irreparably injured.

**FIFTH CAUSE OF ACTION AGAINST DEFENDANTS NYC AND NYPD
NEGLIGENT HIRING, TRAINING, RETENTION, AND SUPERVISION**

49. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

50. Defendants City and NYPD failed to exercise reasonable care in hiring, training, retaining, and supervising their employees and agents, including the individually named Defendants here, thereby breaching their duty to Plaintiff as well as to the public.

51. Defendants City and DOC are responsible and liable for the acts of their employees and agents, including the individually named Defendants here, which were done within the scope of their employment under the doctrine of *respondeat superior*.

52. As a direct and proximate result of these failures, Plaintiff has been irreparably injured.

FEDERAL CLAIMS

**SIXTH CAUSE OF ACTION AGAINST DEFENDANTS SOLIS, MARTINEZ, AND TORRISI
PURSUANT TO 42 U.S.C. § 1983
FALSE ARREST**

53. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

54. As set forth above, Defendants Solis, Martinez, and Torrissi arrested, or caused Plaintiff to be arrested, despite the lack of probable cause and the evidence indicating she did not do what was claimed.

55. As a direct and proximate result of these unconstitutional acts, Plaintiff has been irreparably injured.

SEVENTH CAUSE OF ACTION AGAINST DEFENDANTS SOLIS, MARTINEZ, AND
TORRISI
PURSUANT TO 42 U.S.C. § 1983
MALICIOUS PROSECUTION

56. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

57. As set forth above, Defendants Solis, Martinez, and Torrissi caused Plaintiff to be prosecuted on charges despite the lack of sufficient legal cause and despite the evidence indicating she did not do what was alleged.

58. As a direct and proximate result of these unconstitutional acts, Plaintiff has been irreparably injured.

EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS NYC AND NYPD
PURSUANT TO 42 U.S.C. § 1983
**IMPLEMENTATION OF POLICIES THAT DIRECTLY VIOLATE CONSTITUTIONAL
RIGHTS/FAILURE TO IMPLEMENT POLICIES AND PRACTICES TO AVOID
VIOLATIONS OF CONSTITUTIONAL RIGHTS AND FAILURE TO
TRAIN/SUPERVISE EMPLOYEES AND AGENTS**

59. Plaintiff repeats, re-alleges, and incorporates by reference each and every allegation previously stated.

60. Upon information and belief, Defendants City of New York and New York City Police Department have failed to institute and implement appropriate policies at the Police Department on a variety of subjects including arrests, searches, prosecution, and other areas of importance to the Constitutional rights of citizens and arrestees.

61. In the alternative, and upon information and belief, the City and NYPD have instituted policies addressing these topics but through gross negligence have demonstrated deliberate indifference to citizens and arrestees by failing or refusing to enforce them.

62. Upon information and belief, the City and NYPD have also failed to adequately hire, screen, and supervise police officers, and to provide adequate training regarding their duties as they relate to the Constitutional rights of citizens and arrestees.

63. As set forth above, Defendants Solis and Martinez arrested, charged, and caused Ms. Moreau to be prosecuted despite the lack of probable cause. Defendant Torrisi signed off on the charges.

64. Since 2010 there have been hundreds of allegations of various civil rights and other violations against officers in the 44th Precinct.

65. Of these, more than 160 have been substantiated, for violations ranging from discourteous language to threats of force, excessive force, illegal stops, illegal frisks, sexual harassment, and illegal searches, among other things.

66. Nearly 30 of these substantiated charges have been against supervisory or high-ranking officers, including sergeants, lieutenants, detectives, an inspector, and a captain.

67. There are an additional 50 substantiated charges going back to 2005, including 6 against sergeants.

68. Since just 2015, there have also been at least a dozen successful lawsuits brought in state and federal court against various officers from the 44th Precinct for civil rights violations, including at least one against Defendant Torrisi.

69. The violations against Ms. Moreau occurred in accordance with this very culture, and these very practices policies, and customs, through the City and NYPD's failures to act on information indicating violations were occurring, and through its gross negligence in supervising subordinates, including the individual Defendants here.

70. These actions and inactions demonstrate malice, and violated Ms. Moreau's constitutional rights. As a direct and proximate result of these unconstitutional acts, she has been irreparably injured.

DEMAND FOR JURY TRIAL

71. Plaintiff hereby demands a jury trial.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands the following relief:

- A. judgment for compensatory damages against all Defendants individually and collectively, on all causes of action, in an amount which exceeds the jurisdiction limitations of all lower courts and in an amount to be determined by a properly charged jury at the trial of this action;
- B. A judgment for punitive damages against all Defendants in an amount to be determined by a properly charged jury at the trial of this action;
- C. All attorney's fees, costs and interests;
- D. Any other relief this Court finds to be just, proper, and equitable.

Dated: Albany, New York
November 28, 2022

/s/ Jessica Gorman

Jessica Gorman, Esq.
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ATTORNEY'S VERIFICATION

I, the undersigned, am an attorney duly admitted to practice law in the courts of the State of New York, and affirm the following to be true:

I am a member of Lebedin Kofman, LLP, the attorneys of record for Plaintiff.

I have read the foregoing Complaint, and know the allegations of fact stated therein, that the stated allegations of fact are true to my own knowledge except as to those allegations stated to be on information and belief, and as to those matters, I believe them to be true.

The grounds of my belief as to all matters stated to be upon information and belief are conversations with Plaintiff, my review of the documents contained in files maintained by my office in connection with this matter, and any investigation of the relevant facts and circumstances.

The reason I make this verification instead of Plaintiff is that Plaintiff is not presently within the county where Lebedin Kofman, LLP maintains its offices.

Dated: Albany, New York
November 28, 2022

/s/ Jessica Gorman
Jessica Gorman, Esq.